

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF LOUISIANA

Roderick Hickman	*	Civil Action No. 2:17-cv-08699
Versus	*	Judge Milazzo
Great West Casualty Company et al	*	Magistrate Judge van Meerveld

PLAINTIFF'S FIRST SUPPLEMENTAL AND AMENDED COMPLAINT FOR DAMAGES

Plaintiff supplements and amends his original complaint, as follows:

I.

By here adopting and incorporating by reference, and re-averring, all allegations of the original complaint as to all defendants.

II.

By adding the following additional defendants:

BRANDON BATISTE, a person of the full age of majority and resident of the State of Louisiana; and

PROGRESSIVE SECURITY INSURANCE COMPANY, a domestic / foreign insurance company, licensed to do and doing business in the state of Louisiana.

III.

By adding the following paragraphs to the original complaint:

3.A.

In the alternative to paragraph 3: the accident occurred because Brandon Batiste negligently crossed into the lane occupied by Samuel Taylor, striking the vehicle operated by Samuel Taylor and causing injury to Plaintiff.

4.A.

In the alternative to paragraph 4: The sole and proximate cause of the above referenced accident was the negligence and fault of the Defendant, **Brandon Batiste**, which is attributed to but not limited to the following non-exclusive particulars:

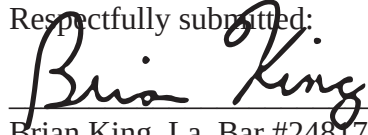
- a) Failure to see what a reasonable driver should have seen;
- b) Failure to keep a good and careful lookout;
- c) Failure to maintain reasonable and proper control while operating the vehicle;
- d) Driving at a speed greater than was reasonable and prudent under the circumstances;
- e) Operating the vehicle in a careless and reckless manner without regard for the safety of others;
- f) Any and all other acts of negligence which may be proven at the trial of this matter.

8.

At all relevant times, **PROGRESSIVE SECURITY INSURANCE COMPANY** provided a policy of liability insurance on the vehicle operated by **BRANDON BATISTE**, on the date of this accident, which provided coverage for the type of loss sued upon, thus rendering **PROGRESSIVE SECURITY INSURANCE COMPANY**, liable to Petitioner with the other named Defendants.

Plaintiff further prays for all general and equitable relief, and all relief prayed for in the original Complaint.

Respectfully submitted:



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CERTIFICATE OF SERVICE

I hereby certify that I filed this pleading with this Court's CM/ECF system, which will send notice of filing to all counsel of record, on November 30, 2017.


Brian King